

2.

CASE #	CASE NAME	HEARING NAME
CVME2503208	PALACIOS VS HERNANDEZ	MOTION FOR LEAVE TO AMEND ON COMPLAINT FOR OTHER REAL PROPERTY OF SALMA PALACIOS

Tentative Ruling: DENIED

There is a failure by Plaintiff to demonstrate an adequate explanation for why the proposed amended claims were not asserted when the lawsuit was originally filed. Moreover, the Supplemental Declaration fails to identify newly discovered evidence or facts. It appears that Plaintiff has known or should have known for years about these claims dating back to the original filing date. It is axiomatic that the parties have had a long-term relationship, questions concerning a 2013 quitclaim deed, there have been historically financial contributions to the property by the parties, occupancy of the property as well as prior real-estate transactions.

While California law favors the liberal amendment of pleadings so that cases may be decided on their merits, there must be a showing (1) of the effect of any and all amendment(s); (2) why the amendment(s) is/are necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. With these facts in hand, the court can evaluate whether their proposed amendment was pursued with reasonable diligence and whether granting the leave to amend would be fair under the circumstances.

While plaintiff claims that amendment would not cause prejudice, it appears that the proposed amendments would materially expand the scope of the litigation and result in substantial prejudice to the defendant. Accordingly, the motion is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512605	SHEPPARD VS SERAT	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT FOR AUTO OF JOHN FESTING BLUE SHEPPARD

Tentative Ruling: Continued to August 24, 2026.